

Wronged, Responsible, Non-Conscious: Machine Moral Status Reconsidered

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Abstract. Must a machine be conscious in order to be a moral patient ("moral consumer") , or morally responsible ("moral producer")? I argue that neither moral patiency nor moral agency requires (machine-inaccessible) phenomenal consciousness.

First, non-conscious moral consumers. To initially establish their possibility, I develop a third-person, moral extension of Keith Frankish's two-pill thought experiment. If phenomenal qualities can be detached from the causal and informational organization underlying deliberation, self-control, communication, and practical concern, then the thought experiment demonstrates their moral irrelevance. If, conversely, the consciousness relevant to those capacities is constituted by functional and informational organization, then it is in principle available to non-conscious systems, including machines.

Next, non-conscious moral consumers. I argue that there is a set of cognitive abilities that do not themselves require or imply phenomenal consciousness (e.g. the ability to plan, form intentions, understand norms, respond to reasons, and regulate one's conduct accordingly) but that are such that, when present in a moral consumer, confer the status of moral producer. Thus, there can (also) be non-conscious moral consumers.

I acknowledge a possible objection to my view, based on the common presupposition: that the capacity to feel pain is required for moral producer status, as that is the only way to make sense of the notion of holding a moral producer of a wrong accountable (through punishment, say). I reply to this objection by consideration of a counterexample: a hypothetical permanently anesthetized wrongdoer.

Further consideration of this case moves beyond replying to the objection to give additional support to the possibility of non-conscious moral consumers. It does so by drawing our attention to the fact that punishments typically do not inflict phenomenal pain, but rather non-conscious forms of harm. Notoriously, a being may be harmed through damage to its capacities, projects, practical autonomy, or normative standing. Familiar cases of non-phenomenal harm—including harms recognizable in tort, and wrongs done to an anaesthetized person—show that phenomenal, felt suffering is not the sole form of morally relevant injury.

With this in view, we can likewise return to the case of the reasons-responsive moral consumer and see the normative force of the conclusion that they are also a moral producer: We are ethically obliged, *ceteris paribus*, to acknowledge their moral producer status; failing to do so would be for us to inflict on them a (non-conscious) harm.

If there is time, I will consider two general objections to the moral status of (computational) machines: 1) machines lack moral status because nothing matters to them: "they don't have skin in the game", they "don't give a damn." 2) machines lack moral status because that requires consciousness, and consciousness is not the kind of thing that can be produced solely by simulating it. I reply that both of these arguments are too powerful, in that they would confer on us a priori knowledge we do not in fact possess: that intelligent design is false, and that we are not in a simulation. We may know or come to know these things, but if we do, we will not know them a priori.

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